

such embarrassment without countervailing justification. Petitioners' allegations that respondents in fact did the acts which constituted violations of constitutional rights are sufficient.

II.

To show such violations, petitioners invoke primarily the Amendment's Due Process Clause.⁸ The essence of their claim is that the police conduct here alleged offends those requirements of decency and fairness which, because they are "implicit in the concept of ordered liberty," are imposed by the Due Process Clause upon the States. *Palko v. Connecticut*, 302 U. S. 319, 325. When we apply to their complaint that standard of a "principle of justice so rooted in the traditions and conscience of our people as to be ranked as fundamental,"⁹ which has been the touchstone for this Court's enforcement of due process,¹⁰ the merit of this constitutional claim is evident. The conception expressed in *Wolf v. Colorado*, 338 U. S. 25, 27, that "The security of one's privacy against arbitrary intrusion by the police . . . is basic to a free society," was not an innovation of *Wolf*. The tenet that there exists a realm of sanctuary surrounding every individual and infrangible, save in a very limited class of circumstances, by the agents of government, had informed the decision of the King's Bench two centuries earlier in *Entick v. Carrington*, 2 Wils. 275, had been the basis of Otis' cotemporary speech against the Writ of

⁸ Petitioners also rely on the Equal Protection Clause. The disposition of the litigation by the majority here makes it unnecessary to discuss this aspect of the case.

⁹ *Snyder v. Massachusetts*, 291 U. S. 97, 105.

¹⁰ See *Twining v. New Jersey*, 211 U. S. 78; *Powell v. Alabama*, 287 U. S. 45; *Palko v. Connecticut*, 302 U. S. 319; *Betts v. Brady*, 316 U. S. 455; *Gibbs v. Burke*, 337 U. S. 773; *Rochin v. California*, 342 U. S. 165.